



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 11TH SANGGUNIANG BAYAN OF PRIETO DIAZ, SORSOGON HELD ON JANUARY 20, 2025 AT ITS SESSION HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/Presiding Officer
Hon. Jo Madel D. Domalaon	S. B. Member
Hon. Bienvenido D. Ayo, Jr.	-do-
Hon. Luis Lee E. Espeña, Jr.	-do-
Hon. Alice D. Emano	-do-
Hon. Rodolfo E. Diolata	-do-
Hon. Juan D. Ebid	-do-
Hon. Albert D. Destura	-do-
Hon. Antonio J. Emano, Jr.	LnB Pres. /S. B. Member
Hon. Rene Joseph D. Domasian	PPSK Pres./S.B. Member

ABSENT:

Hon. Joseph H. Yap, Jr.	S. B. Member/ on leave
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RESOLUTION NO. 017-2025

Introduced by the council

A RESOLUTION AUTHORIZING THE MUNICIPAL MAYOR, HON. ROMEO D. DOMASIAN TO ENTER INTO A MEMORANDUM OF AGREEMENT WITH THE DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT REGIONAL OFFICE NO. V (DSWD RO V) THROUGH ITS REGIONAL DIRECTOR, NORMAN S. LAURIO, FOR THE IMPLEMENTATION OF SUPPLEMENTARY FEEDING PROGRAM IN THE MUNICIPALITY OF PRIETO DIAZ, SORSOGON

WHEREAS, the Sangguniang Bayan is in receipt of the said MOA, duly endorsed by the Municipal Mayor, Hon. Romeo Domasian;

WHEREAS, the Supplementary Feeding Program (SFP) is the provision of food in addition to the regular meals to target children ages 2-5 years old enrolled in the Child Development Center (CDCs) and Supervised Neighborhood Play (SNPs) as a part of the DSWD's contribution to the early childhood care and development (ECCD) program of the government;

WHEREAS, under the section 4(a) of RA 11037, the DSWD, in coordination with the LGUs has been tasked to implement a SFP for undernourished children with ages three (3) to five (5) years which shall include the provision of at least one (1) fortified meal for a period of not less than one hundred twenty (120) days in a year;

WHEREAS, the DSWD, shall, among others, manage and coordinate/supervise the original implementation of the SFP; and release funds to the Municipal LGU;

WHEREAS, the MLGU of Prieto Diaz, shall, among others, update the database of the children beneficiaries of the program; submit a project proposal and signed masterlist of beneficiaries as the basis for funding allocation for the 14th cycle (CY 2024) and the 120 feeding days or the twice-a-day feeding provision for the identified beneficiaries; purchase goods in accordance with the existing laws, accounting, and auditing rules and regulations; tap the Municipal Nutrition Committee to assist in monitoring and providing technical assistance to the implementers of the program monthly;

WHEREAS, on motion of Hon. Antonio Emano, Jr., duly seconded by Hon. Juan Ebid;

NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to authorize the Municipal Mayor, Hon. Romeo D. Domasian to enter into a Memorandum of Agreement with the Department of Social Welfare and Development Regional Office No. V (DSWD RO V) through its Regional Director, Norman S. Laurio, for the implementation of Supplementary Feeding Program in the municipality of Prieto Diaz, Sorsogon;

FINALLY RESOLVED, to transmit this resolution to Municipal Mayor, Hon. Romeo D. Domasian; copy furnished Ms. Betty Arines, MSWDO; Ms. Gemma Ferrer, Municipal Treasurer; Ms. Maribel Aldon, Municipal Accountant; and all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/ Presiding Officer

MEMORANDUM OF AGREEMENT

KNOW ALL PERSONS BY THESE PRESENTS:

This Memorandum of Agreement made and entered into this _____ day of _____, 2025 at _____, between and among:

The **DEPARTMENT OF SOCIAL WELFARE AND DEVELOPMENT (DSWD)**, a national government agency created pursuant to Republic Act No. 5416, through its **FIELD OFFICE V**, with the office address at Magnolia Street, Buraguis, Legazpi City and represented by its **REGIONAL DIRECTOR, NORMAN S. LAURIO** (hereinafter referred to as the "DSWD");

and

The **LOCAL GOVERNMENT UNIT OF PRIETO DIAZ** with address at Perlas, Prieto Diaz, Sorsogon herein represented by its **LOCAL CHIEF EXECUTIVE, HON. ROMEO D. DOMASIAN** (hereinafter referred to as the "LGU");

WITNESSETH

WHEREAS, the Supplementary Feeding Program (SFP) is the provision of food in addition to the regular meals to target children ages 2-5 years old enrolled in the Child Development Center (CDCs) and Supervised Neighborhood Play (SNPs) as part of the DSWD's contribution to the early childhood care and development (ECCD) program of the government;

WHEREAS, the Department of Education (DepEd) and the Department of Social Welfare and Development (DSWD), in consultation with other National Government Agencies (NGAs), Local Government Units (LGUs), Non-Government Organizations (NGOs), and development partners, are mandated by Republic Act (RA) No. 11037 also known as "Masustansyang Pagkain Para sa Batang Pilipino", to promulgate their respective rules and regulations for the efficient and effective implementation of the National Feeding Program for Public Day Care Centers (PDCCs) or CDCs, public kindergarten and elementary schools, pursuant to Section 4 of the said law to address undernutrition among Filipino children;

WHEREAS, under the Section 4(a) of RA No. 11037, the DSWD, in coordination with the LGUs, has been tasked to implement a SFP for undernourished children with ages three (3) to five (5) years which shall include the provision of at least one (1) fortified meal for a period of not less than one hundred twenty (120) days in a year;

WHEREAS, the General Appropriation Act of 2025 stated that the target outcome indicator of SFP is 80% of malnourished children in CDCs and SNPs with improved nutritional status;

WHEREAS, given the limitation in the purchasing power of most families due to the impact of the COVID-19 pandemic and inflation of food commodities, SFP implementation shall assist in addressing the issue of hunger and food security among Filipino children and prevent regression of the current nutritional status of the beneficiaries;

WHEREAS, Section 11 of RA No. 11321 otherwise known as the "Sagip Saka Act" states that the National and Local Government Agencies shall directly purchase agricultural and fishery products from farmers and fisher folk cooperatives and enterprises provided that

the said agricultural and fishery products are necessary in the performance of their respective mandates. The procurement by the national and local government agencies shall be exempt from the application of the bidding process prescribed under relevant government procurement laws provided that said agencies shall undergo a negotiated procurement under the applicable guidelines of the Government Procurement Policy Board;

WHEREAS, the DSWD adopted alternative modes of implementation such as distribution of dry rations, rice and monggo blends, nutripacks, and nutribun with fresh milk to address issues on the continuous delivery of services;

WHEREAS, by virtue of Sangguniang Resolution No. ____, the LGU agrees to enter into a Memorandum of Agreement (MOA) with the DSWD for the implementation of the SFP, and further authorizes the LCE to represent the LGU and sign the MOA herein;

NOW, THEREFORE, for and in consideration of the foregoing premises, the parties agree to undertake the program under the following terms and conditions:

I. ROLES AND RESPONSIBILITIES:

1. DSWD shall:

- a. Manage and coordinate/supervise the regional implementation of the SFP. Designate a Focal Person for the SFP to provide guidance and technical assistance to the Local Social Welfare & Development Officers, CDC/SNP workers, Day Care Workers Federation (DCW) and Day Care Service Parent Group (DCSPG) in the implementation of the Program;
- b. Subject to availability of fund, inform the LGU of the conduct of the 120 feeding days;
- c. Release funds to the Province/City/ Municipal LGU in the amount of _____ (Php _____) based on pertinent provision of Commission on Audit (COA) Circulars 94-013 dated December 13, 1994, COA Circular No. 2016-002 dated May 31, 2016 and 2017-002 dated October 25, 2017.;
- d. Closely monitor the fund management, utilization, program implementation and respond to operational concerns of the LGUs/DCWF/DCSPG/SNP Parents Group/CDC/DCW/SNP Workers;
- e. Consolidate LGU report and submit monthly physical accomplishment and financial report on the utilization of funds to Central Office- Program Management Bureau; and
- f. Conduct a regional evaluation at the end of the implementation period of each cycle.

2. LGU shall:

- a. Update database of children beneficiaries of the program and submit encoded masterlist of beneficiaries to the DSWD utilizing the ECCD-IS;
- b. Submit a project proposal and signed masterlist of beneficiaries as the basis for funding allocation for the 14th cycle (CY 2024) and the 120 feeding days. The LGU shall include in the project proposal the mode of implementation they will use based on the SFP implementing guidelines;
- c. Designate the Provincial/City/Municipal Social Welfare Development Officer (P/C/MSWDO) as Focal Person for the feeding with the task of providing guidance, technical assistance and support to the DCWF/DCSPG in coordination with the Province/City/Municipal Nutrition Action Officer (P/C/MNAO) and include in Local Nutrition Committee (LNC) meetings SF concerns;
- d. As the Focal Person, the P/C/MSWDO shall be responsible in providing administrative and technical assistance in the operationalization of the SFP and in

- overseeing the organization of Parents Committee in each CDCs/SNPS or in the assigned barangay;
- e. Issue Official Receipt to DSWD Field Office ___ as acknowledgement of the fund transfer;
 - f. The P/C/MSWDO shall ensure that funds intended for the DCWF/DCSPG and/or parents/guardians shall be solely for the latter's feeding operation.
 - g. Comply with the set deadline in the submission of all the required documents as basis for funding allocation;
 - h. Maintain a separate subsidiary record for each account;
 - i. Purchase goods in accordance with the existing laws and pertinent administrative order, such as but not limited to RA No. 9184, and resolutions, such as but not limited to the Government Procurement Policy Board Resolution No. 28-2021, and DSWD AO 04 s. 2016, as well as other applicable budgeting, accounting and auditing rules, and regulations;
 - j. Tap the City/Municipal Nutrition Committee to assist in monitoring and providing technical assistance to the implementers of the Program monthly. The City/Municipal Health Office may also assist in providing Vitamin A Supplementation of the DOH and deworming to the target beneficiaries (children 2-5 years old);
 - k. If deemed necessary, provide augmentation in the implementation of the feeding program at the city/municipal and barangay level through cash or in kind if they catered beyond the target number of beneficiaries and other SF-related activities, as mandated by Section 7, of RA No. 11037;
 - l. To submit monthly Report of Checks Issued and Report of Disbursements within 10 days after the end of each month and submit full liquidation thirty (30) days after the completion of the program, the report shall be certified by the accountant and approved by the Head of Province/City/Municipal LGU in accordance with the Commission on Audit (COA) Circulars 94-013 dated December 13, 1994, COA Circular No. 2016-002 dated May 31, 2016 and 2017-002 dated October 25, 2017;
 - m. The LGU shall return all the excess funds to DSWD upon the completion of the project and within thirty (30) days after the completion of the program;
 - n. Consolidate and submit a monthly physical and financial accomplishment report on SFP implementation to DSWD for consolidation, copy furnished the Provincial Office; and
 - o. Book of accounts maintained shall be opened for inspection of any authorized representative of the DSWD and or the auditor in charge in accordance with existing COA regulations.

II. ACCOUNTABILITY

This agreement shall be observed and complied with by the **PARTIES** upon receipt of the fund transferred to the LGU, and shall be implemented for 120 feeding days for the 15th Cycle within the applicable school year, and in accordance with the terms and conditions stipulated herein including the conduct of the twice-a-day feeding, if applicable. Failure on the part of any party to comply with the provisions of this Agreement will warrant its discontinuance without prejudice to the filing of appropriate administrative and/or criminal actions against responsible officers and employees of the erring party.

Any dispute, controversy or claim arising out of or relating to this MOA shall be settled amicably between the parties. In the event that the dispute remains unresolved the Parties shall submit the issue for arbitration and adjudication in accordance with the law.

MEMORANDUM OF AGREEMENT

This Memorandum of Agreement is made and executed between:

COMPUTER COMMUNICATION DEVELOPMENT INSTITUTE – Sorsogon Campus, a non-stock, non-profit educational institution, duly organized and existing under Philippine Laws with office/business address at Rizal St., Sorsogon City 4470 represented herein by EDGAR C. BALASTA, Administrator, hereinafter referred to as the **College**.
and

LGU – PRIETO DIAZ, a domestic corporation duly organized and existing under Philippine Laws with office/business address at **PERLAS, PRIETO DIAZ, SORSOGON** represented herein by **HON. ROMEO D. DOMASIAN, MAYOR**, hereinafter referred to as the **LGU – PRIETO DIAZ**.

Witnesseth:

The parties hereby bind themselves to undertake a Memorandum of Agreement for the purpose of supporting the **COLLEGE**' on-the-job training for student-trainees under the following terms and conditions:

1. The **COLLEGE** shall be responsible for briefing the on-the-job student-trainees who intend to conduct practicum exposure in the **COMPANY** as part of the **COLLEGE** curriculum;
2. The **COLLEGE** shall provide the on-the-job student-trainee the basic orientation on work values, behavior, and discipline to ensure smooth cooperation with the **COMPANY**;
3. The **COLLEGE** shall issue an official endorsement vouching for the well being of the on-the-job student-trainee which shall be used by the **COMPANY** for processing the application of the student-trainee; ✓
4. The **COLLEGE** shall voluntarily withdraw a student-trainee who is found to misbehave and/or act in defiance to existing standards, rules, and regulations of the **COMPANY** and impose necessary university sanctions to the said student-trainee;
5. The **LGU – PRIETO DIAZ**, upon consultation with the **COLLEGE**, may require qualified students to submit themselves to examinations, interviews, and file pertinent documents to support their application; ✓
6. The **LGU – PRIETO DIAZ** is not obliged to employ student-trainee upon completion of the training; ✓
7. The student-trainee shall be personally responsible for any and all liabilities arising from negligence in the performance of his/her duties and functions while under training; ✓
8. There is no employer-employee relationship between the **COMPANY** and the student-trainee;
9. The duration of the program shall be equivalent to 300 working hours unless otherwise agreed upon by the **COMPANY** and the **COLLEGE**; ✓
10. Any violation of the foregoing covenants will warrant the cancellation of the Memorandum of Agreement by the **COMPANY** within thirty (30) days upon notice to the **COLLEGE**.
11. This Memorandum of Agreement shall become effective upon signature of both parties and implementation will begin immediately and shall continue to be valid hereafter until written notice is given by either party thirty (30) days prior to the date of intended termination.

In witness whereof the parties have signed this Memorandum of Agreement at _____
_____, _____ this _____ day of _____, 20__.

For the COLLEGE

EDGAR C. BALASTA
RMO/Administrator

Computer Communication Development Institute
Sorsogon City

Community Tax No: 15329892,
Date of Issue: 01-15-2025
Place of Issue: Talisay, Sorsogon City

For the COMPANY

HON. ROMEO D. DOMASIAN
Mayor

LGU – PRIETO DIAZ

Community Tax No: _____
Date of Issue: _____
Place of Issue: _____



SIGNED IN THE PRESENCE OF:

MARK ANTHONY H. GRESOLA
Representative of the Institution

Representative of the Company

ACKNOWLEDGEMENT

Before me, a Notary Public in the _____, personally appeared
_____ and _____ with Community Tax Certificates
indicated above, known to me to be the same persons who executed the foregoing instrument
and they acknowledged to me that the same is their free will and voluntary deed and that of the
institutions herein represented.

Witness my hand and seal on this _____ day of _____ 2025 in _____,
Philippines.



Doc. No. _____:
Page No. _____:
Book No. _____:
Series of _____: